

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 16, 2018

Honorable Carol Ash
Judge of the Superior Court
County of Merced
627 West 21st Street
Merced, CA 95340

Re: Garcia, Adrian
CDC No.: BH1933
Case No.: 17CR-04410D
Date of Sentence: 8/22/2018

Dear Honorable Carol Ash:

The purpose of this letter is to provide the court with authority to resentence Adrian Garcia pursuant to Penal Code Section 1170, subdivision (d)¹. This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence. As of June 27, 2018 a court's power to resentence under this section expressly extends to judgments entered after a plea agreement, if in the interest of justice.

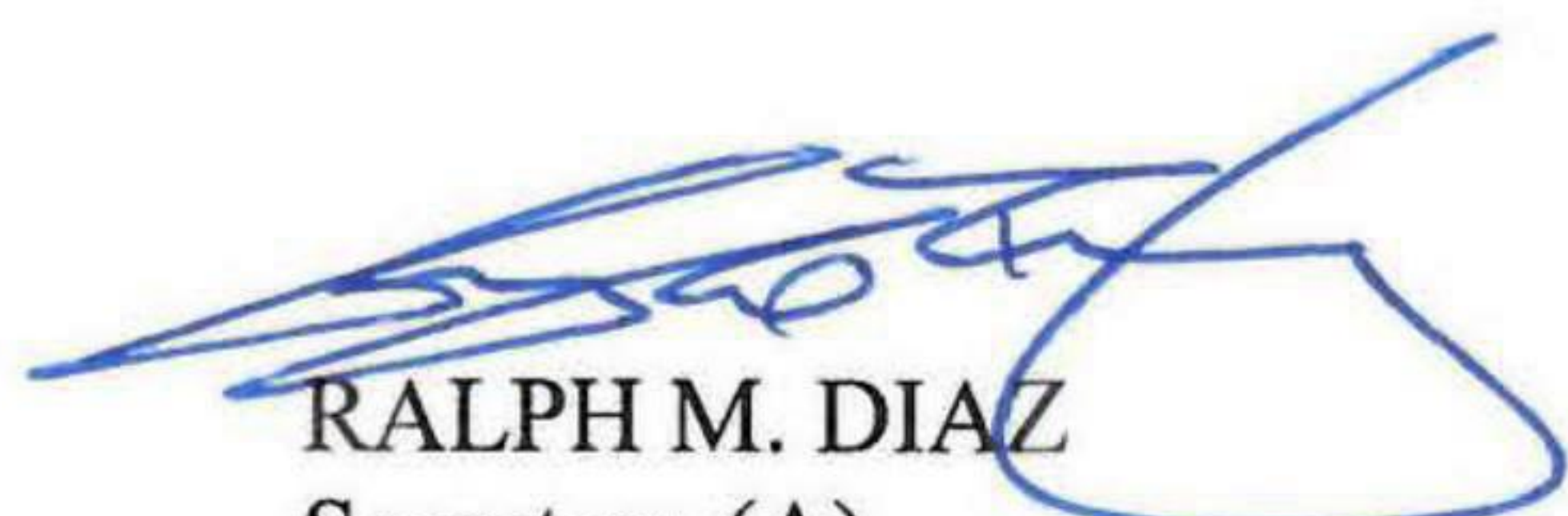
Inmate Garcia was sentenced in 2018, and was convicted of section 245, subdivision (a)(1), Assault-deadly weapon. The trial court sentenced inmate Garcia on 8/22/2018. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22. Both sentence enhancements were attached to Inmate Garcia's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

¹ All further statutory references are to the Penal Code unless otherwise indicated.

Based on the above facts and case law, it appears that inmate Garcia's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled² and that he be resentenced³ in accordance with the cited authority.

Sincerely,



RALPH M. DIAZ
Secretary (A)

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Donald J. Proietti, Merced County Presiding Judge
Merced District Attorney
Public Defender

² Please be advised that victims may be entitled to reasonable notice of any public hearings, and to be heard at said hearings upon request (Cal. Const., art. I, § 28, subd. (b), pars. (7) and (8)).

³ Pursuant to *People v. Kemper* (1980) 112 Cal. App. 3d 434, (re)sentencing that results in an inmate being overdue for release will result in custody credits in excess of the inmate's maximum term of confinement being applied to shorten the parole term. If a court wishes to maintain what it considers to be an adequate supervisory term under those circumstances, the court may request the inmate waive enough credits to preserve an adequate supervisory term. If a court indicates in the abstract of judgement that custody credits have been waived by an inmate to allow for a specified parole term, CDCR will calculate the appropriate number of post-sentence credits that will need to be waived to allow for the specified parole term after the inmate's release.

BH1933 ✓

FELONY ABSTRACT OF JUDGMENT—DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: Merced		17CR-04410D -A		FILED 8-23-18 MERCED SUPERIOR COURT By: <i>[Signature]</i> Deputy
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Adrian Garcia		17CR-05682 -B		
DOB: 8/12/1997				
AKA: CII NO.: BOOKING NO.: 2017-00007154 ☐ NOT PRESENT				
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT				
DATE OF HEARING August 22, 2018	DEPT. NO. Courtroom 1	JUDGE Carol Ash ✓		
CLERK Leann Patton	REPORTER Denisa Dunbar	PROBATION NO. OR PROBATION OFFICER J. Pappas		☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE Matthew Serratto, Deputy District Attorney		COUNSEL FOR DEFENDANT Linden Lindahl, Contract Public Defender		☒ APPOINTED

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
_____ (number of pages attached)

Additional counts are listed on attachment
 _____ (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YR.)	CONVICTED BY			TERM (L., M., Y.)	CONCURRENT	1/2 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (REFER TO item 8)	6M STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED		
						JURY	COURT	PLEA									YRS.	MOS.	
A-02	PC	245(a)(1)	Assault-Deadly Weapon	2017	08 / 22 / 18	X			M									03	00
B-01	PC	25400(a)(1)	Carry Concealed Weapon	2017	08 / 22 / 18			X			X							00	08
					/ /														
					/ /														
					/ /														
					/ /														

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
A-02	PC186.22(b)(1)(B)	5 Years	PC12022.7(a)	3 Years			08 00

3. ENHANCEMENTS charged and found to be true for PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per 1170(h)(1) or (2)

- ☒ to prison per 1170(a), 1170.1(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement
☐ per PC 667(b)-(f) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Preconfinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETE SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: _____

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 11 08

Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: Adrian Garcia			
17CR-04410D	-A	17CR-05682	-B
			-C
			-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$ 3,300 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 3,300 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$ 300 per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ 300 per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$ _____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$ _____ per PC 1202.4(b) (forthwith per PC 2085.5 if prison commitment); \$ _____ per PC 1202.45 suspended unless parole is revoked.
\$ _____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ 1,800 ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund

Case B: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☒ *Victim name(s), if known, and amount breakdown in item 13, below. ☐ *Victim name(s) in probation officer's report.

c. Fines:

Case A: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case B: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case C: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

Case D: \$ _____ per PC 1202.5 \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ Includes: ☐ \$ _____ Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Operations Assessment: \$ 80 per PC 1485.8. e. Conviction Assessment: \$ 60 per GC 70373. f. Other: \$ _____ per (specify): _____

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☐ other (specify): _____

11. REGISTRATION REQUIREMENT: ☒ per (specify code section): PC186.30

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: _____ Suspended: _____ Served forthwith: _____

13. Other orders (specify): *Merced County Jail. Restitution is reserved as to Shawn Hunwardsen

16. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	420	366	54
B	0	0	0
C			
D			
Date Sentence Pronounced		Time Served in State Institution	
08 22 2018		DMH CDC CRC	

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.

Defendant's race/national origin: _____

15. EXECUTION OF SENTENCING IMPOSED

a. ☒ at initial sentencing hearing A, B

b. ☐ at resentencing per decision on appeal

c. ☐ after revocation of probation

d. ☐ at resentencing per recall of commitment (PC 1170(d).)

e. ☐ other (specify): _____

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation

☐ county jail ☐ other (specify): _____

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE Ruth Gallagher	DATE August 23, 2018
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